

(E)RASING IDENTITY AND THE LIMITS OF TRADITIONAL ARGUMENTATION THEORY

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Few will remember much about the 2000 campaign season aside from the historic events in Florida relating to the Presidential election. Yet, in Alabama, “something new,” “something big,” “something courageously honest” happened (“Colorblind,” 2000). Ralph Cook and John England, two candidates for the Alabama Supreme Court, made an historically groundbreaking argumentative choice, the choice to show ads picturing themselves. State newspapers called these advertisements “courageous” because the two candidates are African Americans. This was the first time in Alabama’s history that African American candidates for a statewide election showed their own images in their advertisements.

The purpose of this brief essay is to critically interrogate that choice, the publicly articulated reasons for it and the commentary it spawned. This interrogation implicates some very important theoretical issues for argument scholars, namely, the importance of the identity of the arguer for our theories of argument, the role of silence versus speaking and absence versus presence in argumentation, and the limits of current colorblind argument. Argument construction has played a very important role in efforts to agitate for social justice and racial equality in legal argument, public political argument and inter- and intra-generational interpersonal argument. Yet, very little work has been done investigating the theoretical and practical import of “race” for our theories of argument. Given the tendency of argument scholars to borrow extensively from legal and political philosophy, it is surprising that not much work has been done in the area of critical race studies, and now critical whiteness studies and their relationship to argumentation theory. Having offered that lament, let me suggest that an examination of the Cook and England races provides a good example of some argumentative choices and texts that generate important questions

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about the role of “race” in argument theory and practice. My purpose here is not to attempt to resolve these issues in such a brief forum but, rather, to raise them.

An Historic Choice

In the year 2000, both Ralph Cook and John England ran for the elected office of Alabama State Supreme Court Justice. Both chose to include visual representations of themselves in television advertisements during the election season. Both are African American. Both lost. The result was the first all white Alabama Supreme Court in 20 years.

Their choice to directly reveal their identity as African Americans to the vast majority of voters by including images of themselves in television advertisements was the first time in Alabama history that any African American candidate had done so. In fact, more often than not, the history of Alabama elections has been a history lesson in the politics of race-baiting where black candidates chose not to exhibit images of themselves while white candidates displayed photographs of their black opponents in order to tap into racist sentiment in their favor. The departure of Cook and England’s choice from this history resulted in the state newspapers commenting on it variously as historical, courageously honest, and exhibiting faith in the electorate that should give us hope (“Court,” 2000; “Colorblind,” 2000; Cason, 2000; Witt, 2000).

One newspaper did quote a political science professor opining that party affiliation mattered most: “Bill Stewart, political science professor emeritus from the University of Alabama, said Tuesday’s vote on the two black incumbents will be interesting. ‘I think if the other Democrats win and they don’t, I think it would indicate there has not been much racial progress,’ Stewart said. ‘But if they do about the same as the other Democrats, it would indicate that race wasn’t that crucial a factor’” (Cason, 2000). Yet, the majority recognized the great risk the candidates took and communicated their concern about a possible loss motivated by racism. For example, Robin DeMonia (2000) of the *Birmingham News* quoted Carl Grafton, a political science professor at Auburn University-Montgomery saying that “They (previous candidates) didn’t want voters to know they were black, because a number of the voters were racist.” Later the *News* also wrote that “Incumbent Justice Ralph Cook has taken a calculated - and courageous - gamble. The black Democrat has run statewide ads showing voters that, indeed, he’s black. It’s a shame black candidates have had to try to hide that fact in years past to get elected. It’ll be a bigger shame if Cook loses partly because of those ads” (“Court,” 2000). The *Birmingham Post-Herald* even

suggested that the Cook and England election outcomes would tell us if the advertisements would make the difference.

While it is typical for white candidates to feature their own photographs in their political ads, until this election cycle, that has not been the case for black candidates in statewide races. It wasn't that Alabama's mostly white electorate wouldn't elect black candidates. That had happened several times, in the Supreme Court races of Justice Ralph Cook and the late Justice Oscar Adams. But it remains unknown whether a black can win statewide without effectively hiding the color of his skin by leaving his image out of ads targeted to statewide audiences. This year's Supreme Court ads, by both England and Cook, may provide an answer. (Witt, 2000)

State lawmaker Alvin Holmes was so convinced that Cook and England ultimately lost because of such racism, that he proposed a bill instituting a district-based election system to ensure adequate representation of Alabama's 25% African American population. "The lawmaker said he also thought it was a mistake for the black justices to appear in their own advertisements. 'I think it was a tragic mistake for them to do that,' Holmes said" (Chandler, 2000). Even those who claimed that the losses were more about party affiliation than race had to admit that racism was an issue. "At the same time, race cannot be discounted as a factor, said Moody, noting that 40 percent of voters were against removing a provision in the Alabama Constitution banning interracial marriages" (Chandler, 2000).

Indeed, absent the advertisement issue, both Cook and England were fully expected to win. Cook swamped his opponent in experience, and England had won his previous race for Tuscaloosa Circuit Court Judgeship against a white Republican opponent in 1994, the year of the Republican sweep of Congress. Both ran campaigns emphasizing very conservative themes including their qualifications and experience, their centeredness as "family men" and their embrace of judicial restraint and the absence of politics in the courtroom. Cook's ad portrayed him as a traditional "dedicated family man." "In recent weeks, Cook has been blanketing the state with an upbeat, relatively soft television ad. While an unseen narrator talks about Cook's judicial experience and his family, viewers see footage of the candidate himself — in the courtroom and in an outdoor setting with two adult daughters" (Witt, 2000). England's ad, also quite traditional, contained an endorsement from Howell Heflin:

In the TV commercial, retired U.S. Sen. Howell Heflin, a former chief justice of the Alabama Supreme Court, credits John England with having good "horse sense." There is footage of England, an associate justice on the Alabama Supreme Court, on

the bench. There are references to his judicial experience, and there is footage of him with Heflin. It is, in many ways, a feel-good political ad of a tried-and-true variety, with one notable exception. England, a former Tuscaloosa County circuit judge appointed to the high court in 1999 by Gov. Don Siegelman, is black. (Witt, 2000)

Both were unanimously endorsed by all of the state newspapers. Yet, in the end, they lost the election. Thus, it seems important to critically interrogate the choice and the arguments surrounding it. Doing so poses some interesting challenges to our traditional theories of argument.

The Choice

When asked about their decision before the election, both Cook and England publicly stated that they believed that “race” no longer matters in Alabama enough for them *not* to include their visages in their advertisements. Elaine Witt (2000) of the *Birmingham Post-Herald* wrote:

Asked last week if any of his advisers had warned him away from running such an ad, Cook only smiled. “It’s time. It’s time to do it,” he said. “I think the majority of people in Alabama are looking forward as opposed to looking backward. I’m a realist, and I know there are some voters I won’t get because of my ethnicity, but I think for most of the people in the state that’s not true, and I don’t believe it was a risk to take.” England echoed that sentiment, adding that he was guided by his own experience with Tuscaloosa County voters in 1994. That year, the year of a much-touted Republican sweep in Congress, England won 58 percent of the vote in a general election for a Tuscaloosa circuit court judgeship. His opponent was a white Republican. And Tuscaloosa County, like the state of Alabama, is only about one-fourth black, he noted. So it is clear he won that race with significant white support, England said.

Birmingham News reporter Robin DeMonia’s (2000) story conveyed the same sentiment:

But Dunn (Cook’s campaign coordinator) said Cook isn’t worried that the television spots will cost him votes. Cook, who has served on the Supreme Court since 1993, faces Republican challenger Lyn Stuart, a Baldwin County circuit judge, Nov. 7. “We’ve been all over this state and he’s been well-received everywhere,” Dunn said. “He thinks it’s a new day in Alabama. ... People have gotten past bigotry.”...

As for black candidates, they have been advised by political experts to keep something of a low profile. "A lot of the consultants are skittish about it," Ms. Davis (political science professor) said. "But now there is a sense among some candidates that they are not going to be bullied into keeping their picture out of stuff." She said she doesn't consider Cook's commercials a risk. "His demeanor is not off-putting," she said. "He is an engaging person who I think comes across on television." But Susan Fillippeli, an assistant communication professor at Auburn University, said the commercials might be viewed as more of a gamble if Cook's opponent weren't female. "Neither one of them is the typical middle-age white male," she said. "Perhaps he feels like this is a good time to break with that tradition." But Cook's campaign contends voters won't base their decision on race or gender. "The people of Alabama will look at his record and base their choice on that," Dunn said.

The *Montgomery Advertiser* reported John England's similar emphasis on fairness. "England said that while some observers see racial divides in Alabama, he did not think that would hurt his chances. 'If you're fair, the people of Alabama will support you,' he said during a candidate's forum at Eastmont Baptist Church recently" (Cason, 2000).

Both candidates constructed a rationale for their choice based on an appeal to colorblindness. Cook claimed that most Alabamians are looking forward not backwards, thus attempting to relegate the issue of racism to the past. Campaign coordinator Dunn went so far as to say that because they had been "well received" in their campaign travels that this meant that people have "gotten past bigotry." England made similar arguments claiming that racial divides in Alabama would not hurt him because he was "fair." For England, fairness prevails over racism. Academic commentators suggested some other motives including a defiance against racism, a refusal to be bullied and a diminished threat from a female opponent because of her gender. Yet, the candidates and their representatives themselves did not take this position. Dunn explicitly rejected the gender thesis and both candidates never said anything about defiance or active resistance to racism. Instead, they claimed that racism is no longer an issue; record matters most.

Not surprisingly, the candidates were lauded for this colorblind stance. The *Montgomery Advertiser* concluded that "The two Democrat incumbents, Justices Ralph Cook and John England, ... the first two blacks to serve on the State Supreme Court ... have not made race an issue, nor have their white opponents" (Cason, 2000). Instead, they praised both candidates for running on their records and the issues. The *Birmingham News*

published a more extensive article entitled “Colorblind” about the appearance of the ads. It praised the candidates as “courageously honest” for “putting their faces on television spots now running across the state.” They noted “Never before have black candidates running statewide felt comfortable enough, confident enough, to display the color of their skin on television ads for all Alabamians to see.” This construction of the issue is disturbing because it implies that a choice not to display one’s visage would be dishonest and lacking in confidence, shifting the responsibility of the choice circumscribed by the very existence of racism to those oppressed by it. This shift was accompanied by a direct celebration of “colorblind” sentiment. “Unfortunately, some voters still judge a person by his skin pigment. But Cook and England are betting that they are now so few as to be inconsequential. It would be wonderful if Cook and England are right.” The article concludes “Whatever the outcome, Cook, England and many others believe race is no longer a make-or-break factor in Alabama political campaigns. That sentiment alone is worth cheering” (“Colorblind,” 2000). The *Post-Herald* echoed this judgment. “But the fact that both men have so much faith in the Alabama electorate should be enough to give us all some hope” (Witt, 2000).

The Limits of Colorblind Argument and the Silencing of Resistance

Cook and England’s choice of justifications for their advertisements was circumscribed by the ideological limits of available political argument as evidenced by the praise they received for their colorblind appeals. Their colorblind argument, the embrace of the idea that “race does not matter,” was praised as honest, courageous, confident, comfortable and having faith in the electorate. The implication is that any other argument (e.g., active defiance of racism in the form of bullying or race-baiting) would be dishonest, cowardly, lacking confidence, uncomfortable and lacking faith.

I have described the rising dominance of a neo-conservative version of colorblind argument that uniformly rejects the use of any racial classification. It is motivated by fear of racialized balkanization that distorts but at the same time trades upon the moral force of the civil rights movement’s argument for colorblindness as the prohibition of white subordination of people of color (Crenshaw, 1998). Cook and England embraced and were rewarded for this new version of colorblind argument explicitly stating that race no longer matters, that Alabamians are past their bigotry. As I argue below, this argument appeals to a

desire to transcend racism by transcending race consciousness altogether, which in turn masks white privilege in a racist society:

This transcendence has special appeal because it dodges the difficulties of negotiating the cultural, political and personal meanings of “race” while protecting the interests of those who benefit from institutionalized white privilege. Simply put, colorblind rhetoric posits that if we are blind to “race,” then racism will go away. Transcendence functions to supply a complete and totalizing solution--a principled *answer* to the ambiguous questions of human existence and to preserve individual self-worth in the face of such daunting ambiguity. Colorblindness’ appeal to transcendence enables white Americans to be blind to our individual roles in perpetuating societal or group racism; it allows us to ignore our white privilege. (Crenshaw, 1998, p. 250)

Moreover, this kind of colorblind argument promotes silence about “race” and the invisibility of white racism. Remember the seemingly contradictory statement that the candidates *have not made race an issue* even though they were the very first to use images of themselves in advertisements, an historic first in the racial politics of the state of Alabama. The result was that the historic choice of African American candidates to include images of themselves in their advertisements was not constructed as an historic challenge in defiance of racism. It was constructed as an argument ultimately silencing resistance to racism and preserving the invisibility of white privilege. After all, race is no longer an issue, right?

Yet, Was It Really a Choice? The Identity Question in Argumentation Theory

At this point, I think it important to ask that question because Cook and England’s choice of justification for their move was strictly limited by the available range of accepted ideological positions. As I suggested earlier, the neo-conservative version of colorblind argument enjoys rising ideological dominance—if not complete entrenchment—at this point in our political history. Their conservative messages of experience, family values, judicial restraint and the “absence of politics in the courtroom” were what would have elected them in the first place. A highly politicized position in active defiance of racism might unsettle white voters from the comfortable assumption that we just should not talk about race and we will not have a problem. This placed Cook and England in a very difficult argumentative position. Most white folks understand “race” as a characteristic of a “non-white other” and

do not acknowledge the fact that they are also “raced” in a racist society. Consequently, when issues related to “race” and racism arise, they conclude that people of color lack “objectivity” and make racist assumptions about the suspect motives of arguers of color. So, if we are to understand the candidates’ choice and their selection of arguments for that choice, we also have to examine how their very identity as arguers constrains the nature of their argument given the material and symbolic reality of racism. Arguers of color face entry and other barriers that traditional argument theory ignores. Cases like this one challenge us to reconsider the very foundation of our theories.

Traditional argumentation theories and the liberalism upon which they rely obscure the identity of the arguer. They tend to assume the abstracted existence of a “theoretical everyman” that stands for citizen or arguer and occupies a politically neutral space, gender-neutral, race-neutral, etc. Unfortunately, the failure to theorize the identity of the arguer ignores the lived experience of all those who argue and privileges a white male norm of comparison because it fails to theorize the unique argument experiences of those who must grapple with oppression. Traditional argumentation theories fail to acknowledge how our theoretical conceptions of the arguer’s identity may expand or limit access to the identity of competent arguer for particular individuals. As feminist standpoint theorists have long acknowledged, perspective is a central element of human identity and can be structured by the experience of oppression. I have argued elsewhere at more length and focusing on gender issues that the identity of the competent arguer resides at the heart of any meaningful intersection between the theory and practice of argumentation. The future development of a theory that can make any emancipatory difference must include a close examination of the theoretical construction of the arguer’s identity (Crenshaw, 1995).

In this case, the Cook and England examples illustrate the urgency of expanding these considerations to the issue of “race.” Both Cook and England had limited access to the identity of “competent arguer” because of a dominant racist ideology that ignores the fact that white people are “raced” and promotes suspicion of the “objectivity” and competence of arguers of color. In this instance, the prevalence of this taken-for-granted ideology and how it impacted the arguers’ status diminished their capacity to choose active resistance to racism by constructing the historic choice to include their images in statewide advertisements as vigorous defiance of blatant and entrenched racism, instead of as proof of the passing of racism in our time.

As argumentation theorists, we must take up the challenge presented by cases like this one. We must listen to the arguments of those in margins whose voices and experiences are consistently excluded from our theory building efforts. We must explore how the identity of the arguer impacts argumentation theory for, as this case illustrates, colorblind argumentation theory cannot dismantle the oppression legitimized by colorblind argument.

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